

Mohammad Aslam v. State of U.P. and others

Allahabad High Court · Division Bench · 26 November 2019 · Writ-C No. 37435 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A writ petition disputing the correctness of an electricity bill and seeking quashing of a recovery demand is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. The consumer may approach the appropriate authority under that clause, which is to decide the application by a speaking order after hearing; coercive recovery may be deferred for a short window.

FACTUAL SUMMARY

Mohammad Aslam, a consumer of Pashchimanchal Vidyut Vitran Nigam Limited at Bulandshahr (SC No. 943096, Account No. 6682551000), challenged by writ a recovery order dated 3 August 2019 of the Executive Engineer, Vidyut Vitran Division-I, demanding Rs. 95,139 plus notice expenses of Rs. 25. He also sought a mandamus against coercive recovery and for uninterrupted supply to his residence. The petition put in issue the correctness of the bill. The Division Bench heard counsel for the petitioner and the Electricity Department.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

Where the consumer disputes the correctness of the bill and seeks certiorari against a recovery demand, the writ court will not entertain the petition because a statutory remedy is available under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may approach the appropriate authority under that clause; the authority is to consider and decide the application in accordance with law by a speaking order after opportunity of hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND VALIDITY OF THE 3 AUGUST 2019 RECOVERY OF RS. 95,164

The Court did not examine the demand on merits and relegated the consumer to Clause 6.5. ¶ 1